25-1311 APPLE INC. V. EPIC GAMES, INC.

DECISION BELOW: 161 F.4th 1162

LOWER COURT CASE NUMBER: 25-2935

QUESTION PRESENTED:

This case presents two fundamental and recurring questions concerning the limits on the equitable authority of the federal courts:

1. Whether a court may hold a party in civil contempt based on a violation of an injunction's "spirit" where the injunction is silent as to the conduct upon which contempt is based, as the Ninth Circuit holds; or, instead, whether a court must ground a finding of civil contempt on the violation of an order that clearly and unambiguously proscribes the precise conduct at issue, as other circuits hold.

2. Whether the Ninth Circuit has properly created an "antitrust" or "competition" exception to *Trump v. CASA, Inc*., 606 U.S. 831 (2025), and the longstanding equitable principles on which *CASA* rests, or otherwise disregarded *CASA*'s limits.

GRANTED LIMITED TO QUESTION 1 PRESENTED BY THE PETITION.

CERT. GRANTED 6/30/2026